

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.

2. M-CV-0090708 TIERNAN, WILLIAM v. KEVIE, RICHARD

Defendants' Motion to Vacate and Set Aside Default Judgment Based on Extrinsic Fraud, and Equitable Relief

Defendant moves the court to set aside the judgment entered against him pursuant to Code of Civil Procedure section 473 and the court's equitable powers.

The court initially notes no default judgment was entered against defendant.

Nonetheless, the court is without jurisdiction to hear the motion after the issuance of the remittitur. (*People v. Dutra* (2006) 145 Cal.App.4th 1359, 1366.)

Even assuming arguendo the court had jurisdiction to hear appellant's motion—which it does not—appellant's motion is untimely pursuant to Code of Civil Procedure section 473, subdivision (b) and there is insufficient evidence that the judgment was void for relief pursuant to Code of Civil Procedure section 473, subdivision (d). The court also observes appellant's arguments about title to the real property goes beyond the scope of unlawful detainer proceedings. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385.)

Accordingly, defendant's motion is denied.

3. M-CV-0096410 LHE WOODCREEK WEST v. TORRANCE, DEBORAH

Defendants' Motion to Set Aside Default

Defendants moves to set aside the default entered against them on April 8, 2026.

On May 5, 2026, the court granted defendant's ex parte application for stay pending the hearing on her motion to set aside default.

Defendants move pursuant to Code of Civil Procedure section 657. However, this statute provides relief for seeking a new trial. There was no trial in this matter so this section is inapplicable.

The court also observes that Code of Civil Procedure section 473, subdivision (b) relief is unavailable. The statute dictates that an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473, subd. (b).)